

1 ENGROSSED HOUSE
2 BILL NO. 3148

By: Gise of the House

3 and

4 Rosino of the Senate
5
6

7 An Act relating to motor vehicles; amending 47 O.S.
8 2021, Section 1105, as last amended by Section 1,
9 Chapter 148, O.S.L. 2025 (47 O.S. Supp. 2025, Section
10 1105), which relates to definitions; defining term;
11 requiring inspection by certain individuals; removing
12 certain inspection requirement; requiring inspection
13 at certain sales; modifying certain inspection
14 requirement; authorizing certain inspections;
15 requiring certain collected fee be remitted;
16 requiring deposit of fee; authorizing certain
17 punitive actions; amending 47 O.S. 2021, Section
18 1105.3, which relates to necessity of vehicle
19 identification number; including salvage pools as
20 entities having certain authorization; and providing
21 an effective date.

22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

23 SECTION 1. AMENDATORY 47 O.S. 2021, Section 1105, as
24 last amended by Section 1, Chapter 148, O.S.L. 2025 (47 O.S. Supp.
2025, Section 1105), is amended to read as follows:

Section 1105. A. As used in the Oklahoma Vehicle License and
Registration Act:

1. "Salvage vehicle" means any vehicle which is within the last
ten (10) model years and which has been damaged by collision or

1 other occurrence to the extent that the cost of repairing the
2 vehicle for safe operation on the highway exceeds sixty percent
3 (60%) of its fair market value, as defined by Section 1111 of this
4 title, immediately prior to the damage. For purposes of this
5 section, actual repair costs shall only include labor and parts for
6 actual damage to the suspension, motor, transmission, frame or
7 unibody and designated structural components;

8 2. "Rebuilt vehicle" means any salvage vehicle which has been
9 rebuilt and inspected for the purpose of registration and title;

10 3. "Flood-damaged vehicle" means a salvage or rebuilt vehicle
11 which was damaged by flooding or a vehicle which was submerged at a
12 level to or above the dashboard of the vehicle and on which an
13 amount of loss was paid by the insurer;

14 4. "Unidentifiable" means that the uniqueness of a motor
15 vehicle or motor vehicle part cannot be established by either expert
16 law enforcement investigative personnel specially trained and
17 experienced in motor vehicle theft investigative procedures and
18 motor vehicle identification examination techniques, or by expert
19 employees of not-for-profit motor vehicle theft prevention agencies
20 specially trained and experienced in motor vehicle theft
21 investigative procedures and motor vehicle identification
22 examination techniques;

23 5. "Unrecovered-theft vehicle" means a vehicle which has been
24 stolen and not yet recovered;

1 ~~5.~~ 6. "Recovered-theft vehicle" means a vehicle, including a
2 salvage or rebuilt vehicle, which was recovered from a theft; and

3 ~~6.~~ 7. "Junked vehicle" means any vehicle which is incapable of
4 operation or use on the highway, has no resale value except as a
5 source of parts or scrap and has an eighty percent (80%) loss in
6 fair market value.

7 B. The owner of every vehicle in this state shall possess a
8 certificate of title as proof of ownership of such vehicle, except
9 those vehicles registered pursuant to Section 1120 of this title and
10 trailers registered pursuant to Section 1133 of this title,
11 previously titled by anyone in another state and engaged in
12 interstate commerce, and except as provided in subsection M of this
13 section. Except for owners that possess an agricultural exemption
14 permit pursuant to Section 1358.1 of Title 68 of the Oklahoma
15 Statutes, the owner of an all-terrain vehicle or a motorcycle used
16 exclusively off roads or highways in this state which is purchased
17 or the ownership of which is transferred on or after July 1, 2005,
18 and the owner of a utility vehicle used exclusively off roads and
19 highways in this state which is purchased or the ownership of which
20 is transferred on or after July 1, 2008, shall possess a certificate
21 of title as proof of ownership. Any person possessing an
22 agricultural exemption permit and owning an all-terrain vehicle or a
23 motorcycle used exclusively off roads or highways in this state
24 which is purchased or the ownership of which is transferred on or

1 after July 1, 2008, shall possess a certificate of title as proof of
2 ownership. Upon receipt of proper application information by such
3 owner, Service Oklahoma shall issue an original or transfer
4 certificate of title. Until July 1, 2008, any security interest in
5 an all-terrain vehicle that attached and was perfected before July
6 1, 2005, and that has not otherwise terminated shall remain
7 perfected, and shall take priority over any subsequently perfected
8 security interest in the same all-terrain vehicle, notwithstanding
9 that a certificate of title may have been issued with respect to the
10 same all-terrain vehicle on or after July 1, 2005, and that a lien
11 may have been recorded on said certificate of title. There shall be
12 eight types of certificates of title:

13 1. Original title for any motor vehicle which is not a
14 remanufactured, salvage, unrecovered-theft, rebuilt, rebodied or
15 junked vehicle;

16 2. Salvage title for any motor vehicle which is a salvage
17 vehicle or is specified as a salvage vehicle or the equivalent
18 thereof on a certificate of title from another state;

19 3. Rebuilt title for any motor vehicle which is a rebuilt
20 vehicle;

21 4. Junked title for any motor vehicle which is a junked vehicle
22 or is specified as a junked vehicle or the equivalent thereof on a
23 certificate of title from another state;

1 5. Classic title for any motor vehicle, except a junked
2 vehicle, which is twenty-five (25) model years or older;

3 6. Remanufactured title for any vehicle which is a
4 remanufactured vehicle;

5 7. Unrecovered-theft title for any motor vehicle which has been
6 stolen and not recovered; and

7 8. Rebodied title for any motor vehicle which is a rebodied
8 vehicle.

9 Application for a certificate of title, whether the initial
10 certificate of title or a duplicate, may be made to Service Oklahoma
11 or any licensed operator. When application is made with a licensed
12 operator, the application information shall be transmitted either
13 electronically or by mail to Service Oklahoma by the licensed
14 operator. If the application information is transmitted
15 electronically, the licensed operator shall forward the required
16 application along with evidence of ownership, where required, by
17 mail. Where the transmission of application information cannot be
18 performed electronically, Service Oklahoma is authorized to provide
19 postage paid envelopes to licensed operators for the purpose of
20 mailing the application along with evidence of ownership, where
21 required. Service Oklahoma shall upon receipt of proper application
22 information issue an Oklahoma certificate of title. The
23 certificates may be mailed to the applicant. Upon issuance of a
24

1 certificate of title, Service Oklahoma shall provide the appropriate
2 licensed operator with confirmation of such issuance.

3 C. 1. The application for certificate of title shall be upon a
4 blank form furnished by Service Oklahoma, containing:

- 5 a. a full description of the vehicle,
- 6 b. the manufacturer's serial or other identification
7 number,
- 8 c. the motor number and the date on which first sold by
9 the manufacturer or dealer to the owner,
- 10 d. any distinguishing marks,
- 11 e. a statement of the applicant's source of title,
- 12 f. any security interest upon the vehicle, and
- 13 g. such other information as Service Oklahoma may
14 require.

15 2. The application for a certificate of title for a vehicle
16 which is within the last seven (7) model years shall require a
17 declaration as to whether the vehicle has been damaged by collision
18 or other occurrence and whether the vehicle has been recovered from
19 theft and the extent of the damage to the vehicle. The declaration
20 shall be made by the owner of a vehicle if:

- 21 a. the vehicle has been damaged or stolen,
- 22 b. the owner did or did not receive any payment for the
23 loss from an insurer, or

1 c. the vehicle is titled or registered in a state that
2 does not classify the vehicle or brand the title
3 because of damage to or loss of the vehicle similar to
4 the classifications or brands utilized by this state.

5 The declaration shall be based upon the best information and
6 knowledge of the owner and shall be in addition to the requirements
7 specified in paragraph 1 of this subsection. Service Oklahoma shall
8 not issue a certificate of title for a vehicle which is subject to
9 the provisions of this paragraph without the required declaration,
10 completed and signed by the owner of the vehicle. Upon receipt of
11 an application without the properly completed declaration, Service
12 Oklahoma shall return the application to the applicant with notice
13 that the title may not be issued without the required declaration.
14 Nothing in this paragraph shall prohibit Service Oklahoma from
15 recognizing the type of or brand on a title or other ownership
16 document issued by another state or the inspection conducted in
17 another state and issuing the appropriate certificate of title for
18 the vehicle.

19 3. The certificate of title shall have the following security
20 features:

- 21 a. intaglio printing or security thread, with or without
- 22 watermark,
- 23 b. latent images,
- 24 c. fluorescent inks,

- d. micro print,
- e. void background, and
- f. color coding.

4. Each title issued pursuant to the provisions of the Oklahoma Vehicle License and Registration Act shall be color coded as determined by Service Oklahoma.

5. The certificate of title shall be of such size and design and color as Service Oklahoma may direct pursuant to the provisions of this section. The title shall be on colored paper or other material as designated by Service Oklahoma and be of such intensity or hue as will allow easy identification as to whether the title is an original title, a salvage title, a rebuilt title, remanufactured title, rebodied title or a junked title. The type of title shall be identified on the front of the certificate of title. The original title, rebuilt title, remanufactured title, an unrecovered-theft title, rebodied title or classic title shall be identified by the word "Original", "Rebuilt", "Remanufactured", "Unrecovered Theft", "Rebodied" or "Classic" printed in the upper right quadrant of the certificate of title, in the space which is currently captioned "type of title". A rebodied title shall also identify on the front of the title the year, make and model of the originally manufactured vehicle which has been rebodied and display a notation that reads as follows: "This vehicle has been assembled with new major components licensed by the original manufacturer."

1 D. 1. To obtain an original certificate of title for a vehicle
2 that is being registered for the first time in this state which has
3 not been previously registered in any other state, the applicant
4 shall be required to deliver, as evidence of ownership, a
5 manufacturer's certificate of origin properly assigned by the
6 manufacturer, distributor, or dealer licensed in this or any other
7 state shown thereon to be the last transferee to the applicant upon
8 a form to be prescribed and approved by Service Oklahoma. A
9 manufacturer's certificate of origin shall contain:

- 10 a. the manufacturer's serial or other identification
11 number,
- 12 b. date on which first sold by the manufacturer to the
13 dealer,
- 14 c. any distinguishing marks including model and the year
15 same was made,
- 16 d. a statement of any security interests upon the
17 vehicle, and
- 18 e. such other information as Service Oklahoma may
19 require.

20 2. The manufacturer's certificate of origin shall have the
21 following security features:

- 22 a. intaglio printing or security thread, with or without
23 watermark,
- 24 b. latent images,

1 c. fluorescent inks,

2 d. micro print, and

3 e. void background.

4 E. In the absence of a dealer's or manufacturer's number,
5 Service Oklahoma may assign such identifying number to the vehicle,
6 which shall be permanently stamped, burned or pressed or attached
7 into the vehicle, and a certificate of title shall be delivered to
8 the applicant upon payment of all fees and taxes, and the remaining
9 copies shall be permanently filed and indexed by Service Oklahoma.
10 Service Oklahoma shall assign an identifying number to any rebuilt
11 vehicle if the vehicle identification number displayed on the
12 rebuilt vehicle does not accurately describe the vehicle as rebuilt.
13 The licensed operator, at the time of inspection of the rebuilt
14 vehicle pursuant to Section 1111 of this title, shall identify the
15 make, model, and year for the body to accurately describe the
16 rebuilt vehicle. At the time of the inspection, an appropriate
17 identifying number shall be permanently stamped, burned, pressed, or
18 attached on the rebuilt vehicle. The assigned identifying number
19 shall be recorded on the certificate of title for the rebuilt
20 vehicle. The dealer's or manufacturer's vehicle identification
21 number on the rebuilt vehicle shall be preserved in the computer
22 files of Service Oklahoma for at least five (5) years.

23 F. When registering for the first time in this state a vehicle
24 which was not originally manufactured for sale in the United States,

1 to obtain a certificate of title, Service Oklahoma shall require the
2 applicant to deliver:

3 1. As evidence of ownership, if the vehicle has not previously
4 been titled in the United States, the documents constituting valid
5 proof of ownership in the country in which the vehicle was
6 originally purchased, together with a notarized translation of any
7 such documents; and

8 2. As evidence of compliance with federal law, copies of the
9 bond release letters for the vehicle issued by the United States
10 Environmental Protection Agency and the United States Department of
11 Transportation, together with a receipt issued by the Internal
12 Revenue Service indicating that the applicable federal gas guzzler
13 tax has been paid.

14 Service Oklahoma shall not issue a certificate of title for a
15 vehicle which is subject to the provisions of this paragraph without
16 the required documentation from agencies of the United States and
17 evidence of ownership. Upon receipt of an application without the
18 required documentation, Service Oklahoma shall return the
19 application to the applicant with notice that the certificate of
20 title may not be issued without the required documentation. Nothing
21 in this paragraph shall prohibit Service Oklahoma from issuing
22 certificates of title for antique or classic vehicles not driven
23 upon the public streets, roads, or highways, for mini-trucks
24

1 registered pursuant to Section 1151.3 of this title, or for medium-
2 speed electric vehicles.

3 G. When registering in this state a vehicle which was titled in
4 another state and which title contains the name of a secured party
5 on the face of the other state certificate of title, or such state
6 certificate is being held by the secured party in that state or any
7 other state, Service Oklahoma or the licensed operator shall
8 complete a lien entry form as prescribed by Service Oklahoma. The
9 owner of such vehicle shall file an affidavit with Service Oklahoma
10 or the licensed operator stating that title to the vehicle is being
11 held by a secured party, has not been issued pursuant to the laws of
12 the state where titled, and that there is an existing lien or
13 encumbrance on the vehicle. The current name and address of the
14 secured party or lienholder shall also be stated in the affidavit.
15 The form of the affidavit shall be prescribed by Service Oklahoma
16 and contain any other information deemed necessary by Service
17 Oklahoma. A statement of the lien or encumbrance shall be included
18 on the Oklahoma certificate of title and the lien or encumbrance
19 shall be deemed continuously perfected as though it had been
20 perfected pursuant to Section 1110 of this title. For completing
21 the lien entry form and recording the security interest on the
22 certificate of title, Service Oklahoma or the licensed operator
23 shall collect a fee of Three Dollars (\$3.00) which shall be in
24 addition to other fees provided by the Oklahoma Vehicle License and

1 Registration Act. The fee, if collected by the licensed operator
2 pursuant to this subsection, shall be retained by the licensed
3 operator.

4 H. The charge for each certificate of title issued, except for
5 junked titles as defined in paragraph 4 of subsection B of this
6 section, shall be Eleven Dollars (\$11.00), which charge shall be in
7 addition to any other fees or taxes imposed by law for such vehicle.
8 One Dollar (\$1.00) of each such charge shall be deposited in the
9 Oklahoma Tax Commission Reimbursement Fund through December 31,
10 2022, and beginning January 1, 2023, it shall be deposited in the
11 Service Oklahoma Reimbursement Fund. However, the charge shall not
12 apply to any vehicle which is to be registered in this state
13 pursuant to the provisions of Section 1120 or 1133 of this title and
14 which was registered in another state at least sixty (60) days prior
15 to the time it is required to be registered in this state. When an
16 insurer requests a salvage or junk title in the name of the insurer
17 resulting from the settlement of a total loss claim and upon
18 presentation of appropriate proof of loss documentation as required
19 by Service Oklahoma, such transfer may be processed as one title
20 transaction, without first requiring issuance of a replacement
21 certificate of title in the name of the vehicle owner. The fee
22 shall be Twenty-two Dollars (\$22.00). Two Dollars (\$2.00) of this
23 fee shall be deposited in the Oklahoma Tax Commission Reimbursement
24 Fund.

1 I. The vehicle identification number of a junked vehicle shall
2 be preserved in the computer files of Service Oklahoma for a period
3 of not less than five (5) years. The charge of junked titles as
4 defined in paragraph 4 of subsection B of this section shall be Four
5 Dollars (\$4.00). The fee remitted to the Tax Commission shall be
6 deposited in the Oklahoma Tax Commission Reimbursement Fund through
7 December 31, 2022, and beginning January 1, 2023, this fee shall be
8 deposited in the Service Oklahoma Reimbursement Fund.

9 J. If a vehicle is sold to a resident of another state
10 destroyed, dismantled, or ceases to be used as a vehicle, the owner
11 shall immediately notify Service Oklahoma. Absent evidence to the
12 contrary, failure to notify Service Oklahoma shall be prima facie
13 evidence that the vehicle has been in continuous operation in this
14 state.

15 K. If a vehicle is stolen, the owner shall immediately notify
16 the appropriate law enforcement agency. Immediately after receiving
17 such notification, the law enforcement agency shall notify Service
18 Oklahoma.

19 L. Except for all-terrain vehicles, utility vehicles and
20 motorcycles used exclusively for off-road use, no title for an out-
21 of-state vehicle, except any commercial truck or truck-tractor
22 registered pursuant to Section 1120 of this title which is engaged
23 in interstate commerce or any trailer or semitrailer registered
24 pursuant to Section 1133 of this title which is engaged in

1 interstate commerce, shall be issued without an inspection of such
2 vehicle and payment of a fee of Four Dollars (\$4.00) for such
3 inspection; provided, Service Oklahoma may enter into reciprocal
4 agreements with other states for such inspections to be performed at
5 locations outside the boundaries of this state for vehicles which:

6 1. Are offered for sale at auction;

7 2. Have been solely used as vehicles for rent under the
8 ownership of a licensed motor vehicle dealer or a person engaged in
9 the business of renting motor vehicles; or

10 3. Have not been registered in this or any other state for more
11 than one (1) year.

12 The inspection shall include a comparison of the vehicle
13 identification number on the vehicle with the number recorded on the
14 ownership records and the recording of the actual odometer reading
15 on the vehicle. An establishment engaged in vehicle rentals or
16 leasing as defined or classified in the NAICS Manual under Industry
17 No. 532111 or 532112, shall be exempt from the inspection required
18 pursuant to this subsection; provided, the establishment shall be
19 required to submit payment of any fees required pursuant to this
20 subsection when the title is issued. The four-dollar fee shall be
21 collected by the licensed operator or Service Oklahoma when the
22 title is issued. The licensed operator shall retain Two Dollars
23 (\$2.00). The remaining Two Dollars (\$2.00) shall be deposited in
24 the Service Oklahoma Reimbursement Fund.

1 Service Oklahoma may allow the inspection to be performed at a
2 location out-of-state by another state's department of motor
3 vehicles or state police.

4 M. No title for any out-of-state vehicle offered for sale at
5 salvage pools, salvage disposal sales, or an auction, or by a
6 licensed dealer or a licensed automotive dismantler and parts
7 ~~recycler, shall be issued without~~ unless an inspection has been
8 conducted to compare the vehicle identification number on the
9 vehicle with the number recorded on the ownership record and to
10 record the actual odometer reading on the vehicle. ~~Upon request of~~
11 ~~the seller, person or entity conducting an auction, dealer or~~
12 ~~licensed dismantler, the inspection shall be conducted at the~~
13 ~~location or place of business of the sale, auction, dealer, or the~~
14 ~~dismantler. The inspection shall be conducted by any licensed~~
15 ~~operator or a duly authorized employee thereof; provided, if~~ Such an
16 inspection may be completed by an employee of the salvage pool,
17 salvage disposal sale, auction, licensed dealer, licensed automotive
18 dismantler and parts recycler, or a licensed operator. If the
19 vehicle identification number on the vehicle offered for sale ~~at~~
20 ~~salvage pools, salvage disposal sales or a classic or antique or~~
21 auction does not match the number recorded on the ownership record,
22 ~~the~~ an inspection ~~may~~ shall be conducted ~~at the location of or place~~
23 ~~of business of such sale or auction~~ by any state, county or city law
24 enforcement officer or an agent of the National Insurance Crime

Bureau at the location of or place of business of such sale or
auction or as specified by the state, county, or city law
enforcement officer or agent of the National Insurance Crime Bureau.

Service Oklahoma may ~~enter into reciprocal agreements with other~~
~~states for~~ authorize such inspections to be performed at locations
outside the boundaries of this state ~~for vehicles which:~~

~~1. Are offered for sale at auction;~~

~~2. Have been solely used as vehicles for rent under the~~
~~ownership of a licensed motor vehicle dealer or a person engaged in~~
~~the business of renting motor vehicles; or~~

~~3. Have not been registered in this or any other state for more~~
~~than one (1) year.~~

The inspection shall be certified upon forms prescribed by Service
Oklahoma. The name and other identification of the authorized
person conducting the inspection shall be legibly printed or typed
on the form. Prior to any inspection by any employee of a licensed
operator, ~~the licensed operator,~~ salvage pool, salvage disposal
sale, auction, licensed dealer, licensed automotive dismantler and
parts recycler, the employing entity shall notify Service Oklahoma
of the name and any other identification information requested by
Service Oklahoma of the authorized person. A signature specimen of
the authorized person shall be submitted to Service Oklahoma by the
employing ~~licensed operator~~ entity. If the authorization to inspect
vehicles is withdrawn or the employer-employee relationship is

1 terminated, the ~~licensed operator~~ employing entity, immediately,
2 shall notify Service Oklahoma and return any remaining inspection
3 forms to Service Oklahoma. The fee for the inspection performed by
4 a licensed operator shall be Four Dollars (\$4.00). The licensed
5 operator shall retain Three Dollars (\$3.00) of the fee. The fee for
6 an inspection performed by employees of salvage pools, salvage
7 disposal sales, auctions, licensed dealers, or licensed automotive
8 dismantler and parts recyclers shall be One Dollar (\$1.00) and shall
9 not be retained but remitted to Service Oklahoma for deposit into
10 the Service Oklahoma Reimbursement Fund pursuant to Section 3-106 of
11 this title. Fees received by a licensed operator or an authorized
12 employee thereof shall be handled and accounted for in the manner as
13 prescribed by law for any other fees paid to or received by a
14 licensed operator. Out-of-state vehicles brought into this state by
15 a person licensed in another state to sell new or used vehicles to
16 be sold within this state at a motor vehicle auction which is
17 limited to dealer-to-dealer transactions shall not be required to be
18 inspected, unless the vehicle is purchased by an Oklahoma licensed
19 dealer. Any person licensed in another state to sell new or used
20 motor vehicles, who offers a motor vehicle for sale within this
21 state at a motor vehicle auction which is limited to dealer-to-
22 dealer transactions, shall not be within the definition of "owner"
23 in Section 1102 of this title, for purposes of Section 1101 et seq.
24 of this title. If Service Oklahoma, the Oklahoma New Motor Vehicle

1 Commission, or the Oklahoma Used Motor Vehicle, Dismantler, and
2 Manufactured Housing Commission finds that a person under its
3 jurisdiction has not complied with this section or falsified an
4 inspection form, the person's authority to perform an inspection
5 under this section may be suspended or revoked; and Service
6 Oklahoma, the Oklahoma New Motor Vehicle Commission, or the Oklahoma
7 Used Motor Vehicle, Dismantler, and Manufactured Housing Commission
8 may take further punitive action, including, but not limited to,
9 fines, suspension or revocation of the person's license to conduct
10 business.

11 N. A licensed motor vehicle dealer, upon payment of a fee of
12 Fifteen Dollars (\$15.00), may reassign an out-of-state certificate
13 of title to a used motor vehicle provided such licensed dealer
14 obtains the appropriate inspection form required by either
15 subsection L or M of this section and attaches the form to the out-
16 of-state certificate of title. Licensed operators shall be allowed
17 to retain Two Dollars and twenty-five cents (\$2.25) of the fee plus
18 an additional Two Dollars (\$2.00) or Three Dollars (\$3.00) as
19 provided in subsections L and M of this section for performance of
20 the inspection. Two Dollars (\$2.00) of the fee shall be deposited
21 in the Service Oklahoma Reimbursement Fund. An out-of-state vehicle
22 which has been rebuilt shall be inspected pursuant to the provisions
23 of Section 1111 of this title. Service Oklahoma shall train
24 licensed operators in interpreting vehicle identification numbers to

1 assure that it accurately describes the vehicle and to detect
2 rollback or alteration of the odometer. Failure of a licensed
3 operator to inspect the vehicle and make the required notations
4 shall be a misdemeanor punishable by a fine of not more than One
5 Thousand Dollars (\$1,000.00) for the first offense and Five Thousand
6 Dollars (\$5,000.00) for the second offense or subsequent offense, or
7 by imprisonment in the county jail for not more than six (6) months,
8 or by both such fine and imprisonment.

9 O. The ownership of any unrecovered vehicle which has been
10 declared a total loss by an insurer because of theft shall be
11 transferred to the insurer by an unrecovered-theft vehicle title;
12 provided, the ownership of any such vehicle which has been declared
13 a total loss by an insurer licensed by the Insurance Department of
14 the State of Oklahoma and maintaining a multi-state motor vehicle
15 salvage processing center in this state shall be transferred to the
16 insurer by a salvage or an unrecovered-theft title without the
17 requirement of a visual inspection of the vehicle identification
18 number by the insurer. Upon recovery of the vehicle, the ownership
19 shall be transferred by an original title, salvage title, or junked
20 title, as may be appropriate based upon an estimate of the amount of
21 loss submitted by the insurer.

22 P. When an insurance company makes a total loss settlement on a
23 total loss vehicle and the insurance company or a salvage pool
24 authorized by the insurance company is unable to obtain the properly

1 endorsed certificate of ownership or other evidence of ownership
2 acceptable to Service Oklahoma within thirty (30) days following
3 acceptance by the owner of an offer of an amount in settlement of a
4 total loss, that insurance company or salvage pool, on a form
5 provided by Service Oklahoma and signed under penalty of perjury,
6 may request Service Oklahoma to issue the applicable salvage title
7 for the vehicle. The request shall include information declaring
8 that the requester has made at least two written attempts to obtain
9 the certificate of ownership or other acceptable evidence of title.

10 Q. The owner of any vehicle which is incapable of operation or
11 use on the public roads and has no resale value, except as parts,
12 scrap, or junk, may deliver the certificate of title to the vehicle
13 to Service Oklahoma for cancellation. Upon verification that any
14 perfected lien against the vehicle has been released, the
15 certificate of title shall be canceled without any fee, charge, or
16 cost required from the owner. The vehicle identification numbers on
17 the certificates of title shall be preserved in the computer files
18 of Service Oklahoma for at least five (5) years from the date of
19 cancellation of the certificate of title. Service Oklahoma shall
20 prescribe and provide an affidavit form to be completed by the owner
21 of any vehicle for which the certificate of title is canceled. No
22 title or registration shall subsequently be issued for a vehicle for
23 which the certificate of title has been surrendered pursuant to this
24 subsection. Service Oklahoma shall prescribe a form for the

1 transfer of ownership of a vehicle for which the certificate of
2 title has been canceled.

3 R. The owner of a vehicle which is not within the last ten (10)
4 model years, not roadworthy and not capable of repair for operation
5 or use on the roads and highways, or a vehicle which is being sold
6 to a scrap metal dealer pursuant to Section 11-92 of Title 2 of the
7 Oklahoma Statutes, shall transfer the vehicle only upon a
8 certificate of ownership prescribed by Service Oklahoma, if the
9 certificate of title to the vehicle is lost, has been canceled, or
10 otherwise not available. The prescribed ownership form shall
11 include the names and addresses of the buyer and seller, the driver
12 license number or Social Security number of the seller, the make and
13 model of the vehicle, and the public vehicle identification number.
14 If there is no public vehicle identification number, the vehicle
15 shall be inspected by a law enforcement officer to verify the
16 absence of the number on the vehicle and the prescribed ownership
17 form shall include a signed statement, by such officer, verifying
18 the absence of the number.

19 The certificate of ownership shall be completed in triplicate.
20 The buyer and seller shall each retain a copy. Within thirty (30)
21 days of the transaction, the seller shall submit one copy to Service
22 Oklahoma or a licensed operator accompanied with a fee of Four
23 Dollars (\$4.00). One Dollar (\$1.00) shall be retained by the
24 licensed operator and Three Dollars (\$3.00) shall be deposited in

1 the Oklahoma Tax Commission Reimbursement Fund in the State Treasury
2 through December 31, 2022, and beginning January 1, 2023, this fee
3 shall be deposited in the Service Oklahoma Reimbursement Fund.

4 Upon receipt of the certificate, Service Oklahoma shall verify
5 that any perfected lien upon the vehicle has been released. If the
6 lien is not released, Service Oklahoma shall mail notice of the
7 transfer to the lienholder at the lienholder's last-known address.
8 If a certificate of title has been issued, it shall be canceled and
9 the vehicle identification number shall be preserved in the computer
10 of Service Oklahoma for at least five (5) years. The buyer of the
11 vehicle may not be sued and shall not be liable for monetary damages
12 to the lienholder, however, the vehicle shall be subject to a valid
13 repossession by a lienholder.

14 S. Service Oklahoma shall notify the chief administrative
15 officer of the agency or department responsible for issuing motor
16 vehicle certificates of title in each state in the United States of
17 the types of motor vehicle certificate of title effective in
18 Oklahoma on and after January 1, 1989.

19 T. When registering for the first time in this state a
20 remanufactured vehicle which has not been registered in any other
21 state since its remanufacture, before issuing a certificate of
22 title, Service Oklahoma shall require the applicant to deliver a
23 statement of origin from the remanufacturer.

1 U. If a vehicle is sold to a foreign buyer pursuant to the
2 provisions of the Automotive Dismantlers and Parts Recycler Act, the
3 licensed seller shall stamp the title with: "EXPORT ONLY.
4 NONTRANSFERABLE IN THE UNITED STATES." The licensed seller shall
5 supply Service Oklahoma the title number, the vehicle identification
6 number and the foreign buyer's bid identification number on a form
7 prescribed by Service Oklahoma. Service Oklahoma shall cancel the
8 title, and the vehicle identification number shall be preserved in
9 the computer files of Service Oklahoma for a period of not less than
10 five (5) years.

11 V. Service Oklahoma shall not be considered a necessary party
12 to any lawsuit which is instigated for the purpose of determining
13 ownership of a vehicle, wherein Service Oklahoma's only involvement
14 would be to issue title, and the court shall issue an order
15 dismissing Service Oklahoma from the pending action. In the event
16 no other party or lienholder can be identified as to ownership or
17 claim, Service Oklahoma shall accept an affidavit of ownership from
18 the party claiming ownership and issue proper title thereon.

19 SECTION 2. AMENDATORY 47 O.S. 2021, Section 1105.3, is
20 amended to read as follows:

21 Section 1105.3. Every vehicle shall have and contain a vehicle
22 identification number, which number shall not be obliterated,
23 erased, mutilated, removed, or missing. This section shall not
24 affect those persons authorized by law to have in their possession a

1 motor vehicle on which the manufacturer's number or numbers have
2 been obliterated, erased, mutilated, removed, or missing. For the
3 purposes of this section, "persons authorized by law" shall include
4 salvage pools authorized to store vehicles for insurance companies
5 which are requiring inspection.

6 SECTION 3. This act shall become effective November 1, 2026.

7 Passed the House of Representatives the 5th day of March, 2026.

8
9
10 Presiding Officer of the House
of Representatives

11
12 Passed the Senate the ____ day of _____, 2026.

13
14 Presiding Officer of the Senate
15